

Ashish Gulati vs Smt. Anshu Gulati on 24 August, 2023

Author: Rajani Dubey

Bench: Rajani Dubey

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR
Order reserved on : 12/05/2023
Order passed on : 24/08/2023

WP(227) No. 609 of 2021
Ashish Gulati, S/o Late Shri N.L. Gulati, aged 42 years, R/o 25,
Sunder Nagar, Bhilai, District Durg (CG)
---- Petitioner/Non-applicant/plaintiff
Versus
Smt. Anshu Gulati, W/o Ashish Gulati, aged 38 years, Present
Address - D-306, Sector-05, Tagore Nagar, Raipur (CG)
---- Respondent/Applicant/Defendant

For Petitioner : Mr. Siddharth Rathod, Advocate.

For Respondent : Mr. Manoj Paranjpe with Mr. Siddharth Tiwari, Advocates.

Hon'ble Smt. Justice Rajani Dubey CAV ORDER This petition under Article 227 of the Constitution of India has been filed against the order dated 4.3.2021 passed by learned 1 st Additional Principal Judge, Family Court, Durg in Misc. Civil Suit No.15/2015 whereby the application under Section 5 of the Limitation Act filed by the respondent/defendant has been allowed.

02. Brief facts of the case are that the petitioner filed an application under Section 9 of the Hindu Marriage Act before the Family Court, Durg which was registered as Civil Suit No.582-A/2012 and vide judgment dated 30.11.2012 the said application was allowed in favour of the petitioner directing the respondent to restore her matrimonial relationship with the petitioner within a period of one month. Thereafter, vide order dated 12.3.2013 the learned Executing Court executed the aforesaid order. However, the respondent filed an application under Order 9 Rule 13 read with Section 151 of CPC for setting aside the aforesaid judgment dated 30.11.2012 and along with that application, she filed an application under Section 5 of the Limitation Act for condoning the delay in preferring the said application.

03. Learned Family Court after hearing both the parties and taking into account the material placed on record, by the impugned order dated 4.3.2021 allowed the application under Section 5 of the Limitation Act. Hence this petition filed by the petitioner.

04. Learned counsel for the petitioner submits that the impugned order is arbitrary, illegal and contrary to the facts and circumstances of the case as the same has been passed without assigning any reason and contrary to the material available on record. The allegations so levelled by the respondent against the learned Presiding Officer i.e. on her suggestion she remained ex-parte in the pending proceedings, are not binding and having no force of law. Therefore, such irrational, illogical and unreasonable defence for her non-appearance before the Court below is arbitrary, illegal and noest in the eyes of law. Learned Court below has failed to appreciate the self-contrary statement of the respondent as on the one hand she is making allegation against the Presiding Officer for not participating in the said proceedings as a result of which an ex-parte judgment was passed and on the other hand, making false allegation against the petitioner that just to harass her and to get divorce, he has obtained ex-parte decree. She is an educated, mature and sound person and has rational mind to think wisely on such suggestion or advice, if given to her. Learned Court below has also failed to appreciate that there is enormous, unexplained and gigantic delay in preferring the application under Order 9 Rule 13 read with Section 151 of CPC and as such, the same being barred by limitation is not maintainable.

05. It has been further contended that it is well settled law that the party who is seeking any relief must approach the Court of law at the earliest and within limitation, but in the instant case, just to harass the petitioner, the respondent is acting malafidely and illegally which is revealed from the false story so cooked up in the said application. The reasons assigned by the learned Family Court for condoning the delay in preferring the application under Order 9 Rule 13 of CPC are arbitrary and illegal. It has failed to see that after passing of the orders dated 30.11.2012 and 12.3.2013, the same were duly affirmed by this Court so far as the respondent is concerned. But in spite of it, the respondent has failed to honour and comply with the verdict of the Court of law to restore her matrimonial relationship with the petitioner which reveals her malafide intention and foul play to harass the petitioner. It is only when the petitioner lost all his hope of reconciliation and left with no other option that he filed an application for divorce under Section 13 of the Hindu Marriage Act and it is only thereafter just to frustrate the said proceedings, the instant application under Order 9 Rule 13 read with Section 151 of CPC has been filed by the respondent. The order impugned passed by the learned Court below is without any jurisdiction and as such, not sustainable in the eye of law and is liable to be set aside.

Reliance has been placed on the decision of the Hon'ble Supreme Court in the matter of N. Balakrishnan Vs. M. Krishnamurthy reported in 1998 AIR (SCW) 3139.

06. On the other hand, learned counsel for the respondent submits that before the Family Court, written statement was filed by the respondent/wife and on 7.8.2012 during the course of counselling, she was advised to become ex-parte in the proceedings. Feeling aggrieved by the said advise, an application for transfer of the matter was filed before the Family Court on 11.9.2012 along with affidavit vide Annexure R/1. In para 2 of the said application, it was specifically mentioned that she was advised to be ex-parte. The said application was registered as Misc. Civil Case No. 74/2012 and allowed by the Court transferring the matter to another Court. Due to the said advice and apprehension that she will not get justice, she could not present herself before the Court on 19.11.2012 and earlier dates. From bare perusal of the order sheets, it appears that on 18.10.2012 the

records were transferred to the Court of 1 st Additional Principal Judge, Family Court, Durg, the same was registered on the same day, registered notice was issued to the respondent/wife and the matter was fixed for 19.11.2012 for conciliation and presence of the parties. Thereafter, on 30.11.2012 the judgment was delivered by the Family Court.

07. It is argued that the respondent filed application under Order 9 Rule 13 of CPC along with a detailed application under Section 5 of the Limitation Act categorically stating that after institution of the execution proceedings, she came to know about the ex-parte order. The said ex- parte judgment was challenged before this Court by filing appeal i.e. FAM No.35/2012 and vide order dated 15.12.2014 (Annexure R/3) the same was dismissed as withdrawn with liberty to the respondent/wife to file appropriate petition for setting aside the ex-parte judgment and decree passed against her before the Family Court. The respondent/wife also filed her affidavit in support of the averments made in the application for condonation of delay vide Annexure R/4. She also examined her brother Sunil Kumar Dua. Annexure R/5 is the copy of affidavit of Sunil Kumar Dua along with certain exhibited documents. On 3.11.2018 evidence of the respondent was closed and the matter was fixed for recording evidence of witness Jagdish Dua. The petitioner did not examine either himself or any of his witnesses. The delay was not inordinate or malafide and the order passed by the learned Court below is well reasoned order. The conduct of the petitioner/husband is also required to be seen as he filed an application under Section 13 of the Hindu Marriage Act on 19.6.2015. On the one hand, he is insisting upon execution of Section 9 application and on the other hand, made an application under Section 13 of the Hindu Marriage Act. Ultimately on 4.9.2021 he withdrew the said application under Section 13 vide Annexure R/7. In view of aforesaid submission, it is clear that the impugned order has been passed strictly in accordance with law and as such, does not call for any interference by this Court. The instant petition being without any merit is liable to be dismissed.

Reliance has been placed on the decisions in the matters of Municipal Corporation of Ahmedabad VS. Voltas Limited, AIR 1995 Gujarat 29; Vedabai Vs. Shantaram Baburao Patil, (2001) 9 SCC 106 and R.B. Ramlingam Vs. R.B. Bhvaneswari, 2009 LawSuit (SC) 95.

08. Heard learned counsel for the parties and perused the material available on record.

09. It is an admitted fact that the petitioner filed an application under Section 9 of the Hindu Marriage Act against the respondent which was decided on 30.11.2012 in his favour. Thereafter, the respondent filed an appeal against the said judgment dated 30.11.2012 before this Court, which was dismissed as withdrawn vide order dated 15.12.2014 with liberty to the respondent to file appropriate application for setting aside the ex-parte judgment and decree passed against her before the Family Court. This order was passed on 15.12.2014 and she filed an application under Order 9 Rule 13 read with Section 151 of CPC on 23.10.2015 with an application under Section 5 of the Limitation Act where she has explained the delay in filing the said application before the Family Court.

10. Hon'ble Supreme Court in the matter of M.K. Prasad Vs. P. Arumugam, (2001) 6 SCC 176, observed in paras 7 & 8 as under:

"7. In any case in which a decree is passed ex-parte, the defendant can apply to the court by which the decree was passed for an order to set it aside and if he satisfies the court that he was prevented by any sufficient cause from appearing when the suit was called on for hearing, the Court shall make an order setting aside the decree as against him upon such terms as to costs, payment into court or otherwise as it thinks fit. Such an application can be filed within 30 days as provided under Article 123 of the Limitation Act. In case of delay, the defendant can avail of the benefit of Section 5 of the Limitation Act and seek its condonation by satisfying the court regarding the existence of circumstances which prevented him from approaching the court within the limitation prescribed by the statute.

8. In construing Section 5 of the Limitation act, the court has to keep in mind that discretion in the section has to be exercised to advance substantial justice. The court has a discretion to condone or refuse to condone the delay as is evident from the words "may be admitted" used in the section. While dealing with the scope of Section 5 of the Limitation Act, this Court in *Ramlal v. Rewa Coalfields Ltd.* [AIR 1962 SC 361] held:

"6. Section 5 of the Limitation Act provides for extension of period in certain cases. It lays down, inter alia, that any appeal may be admitted after the period of limitation prescribed therefor when the appellant satisfies the court that he had sufficient cause for not preferring the appeal within such period. This section raises two questions for consideration. First is, what is sufficient cause; and the second, what is the meaning of the clause "within such period"? With the first question we are not concerned in the present appeal. It is the second question which has been decided by the Judicial Commissioner against the appellant. He has held that "within such period" in substance means during the period prescribed for making the appeal. In other words, according to him, when an appellant prefers an appeal beyond the period of limitation prescribed he must show that he acted diligently and that there was some reason which prevented him from preferring the appeal during the period of limitation prescribed. If the Judicial Commissioner has held that "within such period" means "the period of the delay between the last day for filing the appeal & the date on which the appeal was actually filed" he would undoubtedly have come to the conclusion that the illness of Ramlal on February 16 was a sufficient cause. That clearly appears to be the effect of his judgment. That is why it is unnecessary for us to consider what is "a sufficient cause" in the present appeal. It has been urged before us by Mr. Andley, for the appellant, that the construction placed by the Judicial Commissioner on the words "within such period" is erroneous.

7. In construing S.5 it is relevant to bear in mind two important considerations. The first consideration is that the expiration of the period of limitation prescribed for making an appeal gives rise to a right in favour of the decree-holder to treat the decree as binding between the parties. In other words, when the period of limitation prescribed has expired the decree holder has obtained a benefit under the law of

limitation to treat the decree as beyond challenge, and this legal right which has accrued to the decree-holder by lapse of time should not be light-heartedly disturbed. The other consideration which cannot be ignored is that if sufficient cause for excusing delay is shown discretion is given to the court to condone delay and admit the appeal. This discretion has been deliberately conferred on the court in order that judicial power and discretion in that behalf should be exercised to advance substantial justice. As has been observed by the Madras High Court in *Krishna v. Chathappan*, ILR (1890) 13 Mad 269, "Section 5 gives the court a discretion which in respect of jurisdiction is to be exercised in the way in which judicial power and discretion ought to be exercised upon principles which are well understood; the words 'sufficient cause' receiving a liberal construction so as to advance substantial justice when no negligence nor inaction nor want of bonafide is imputable to the appellant."

11. Hon'ble Supreme Court in the matter of *Vedabai* (supra) observed in para 5 as under:

"5. In exercising discretion under Section 5 of the Limitation Act the Courts should adopt a pragmatic approach. A distinction must be made between a case where the delay is inordinate and a case where the delay is of a few days. Whereas in the former case the consideration of prejudice to the other side will be a relevant factor so the case calls for a more cautious approach but in the latter case no such consideration may arise and such a case deserves a liberal approach. No hard and fast rule can be laid down in this regard. The Court has to exercise the discretion on the facts of each case keeping in mind that in construing the expression 'sufficient cause' the principle of advancing substantial justice is of prime importance. In our view in this case, the approach of the learned Additional District Judge is wholly erroneous and his order is unsustainable. It is evident that the discretion under Section 5 of the Limitation Act is exercised by the Additional District Judge in contravention of the law laid down by this Court, that the expression 'sufficient cause' should receive liberal construction, in catena of decisions (see *State of West Bengal v. The Administrator, Howrah Municipality & Others*, [1972] 1 SCC 366 and *Smt. Sandhya Rani Sarkar v. Smt Sudha Rani Debi & Others*, [1978] 2 SCC 116). The High Court in exercising its jurisdiction under Section 115 C.P.C. failed to correct the jurisdictional error of the appellate court."

12. Thus, from the aforesaid judicial pronouncements, it is clear that while dealing with application for condonation of delay under Section 5 of the Limitation Act, the Court has to exercise discretion on the facts of each case keeping in mind that in construing the expression 'sufficient cause' the principle of advancing substantial justice is of prime importance. In the case in hand also it is clear from the documents available on record that the respondent/wife filed appeal before this Court against the ex-parte judgment dated 30.11.2012 but when she realized her fault, she withdrew the same with liberty to file appropriate application before the Family Court for setting aside the ex-parte judgment. The respondent has filed various affidavits in support of the averments made in the application for condonation of delay. Learned Family Court after proper appreciation of the

affidavits and circumstances of the case found that the delay is not malafide and consequently, allowed the application of the respondent/wife. It is also an important aspect that this case is a family matter and both the parties are husband and wife. So, learned Family Court has rightly allowed the application under Section 5 of the Limitation Act filed by the respondent/wife.

13. So far as the judgment relied upon by learned counsel for the petitioner is concerned, the same being distinguishable on facts is of no help to him.

14. Considering the facts and circumstances of the case in light of the aforesaid decisions of the Hon'ble Supreme Court, this Court finds no good ground to interfere with the impugned order of the learned Family Court. Accordingly, the instant petition being without any substance is liable to be dismissed and is dismissed as such.

Sd/ (Rajani Dubey) Judge Khan